Syllabus

FLOWERS FOODS, INC., ET AL. *v.* BROCK

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE TENTH CIRCUIT

No. 24–935. Argued March 25, 2026—Decided May 28, 2026

The Federal Arbitration Act (FAA) requires courts to enforce many private arbitration agreements, but it also provides that "nothing" in the law shall be used to compel arbitration in disputes involving the "contracts of employment" of any class of workers "engaged in . . . interstate commerce." 9 U. S. C. § 1. This case poses the question whether someone can qualify as a worker under the § 1 exemption if he never crosses state lines and never interacts with vehicles that do. Flowers Foods, Inc., is a large producer of packaged baked goods with bakeries in 19 States. To get its products to market, the company depends in part on franchisees who buy the distribution rights to Flowers's products in specific geographic territories. Angelo Brock is one such franchisee serving the Denver area; he picks up Flowers's products from a warehouse in Colorado and delivers them to local stores, all without leaving the State. In 2022, Brock sued Flowers in federal district court alleging that the company had underpaid him and other distributors in violation of various federal and state laws. Flowers moved to compel arbitration, arguing that the FAA generally requires courts to stay or dismiss cases when the parties have agreed to resolve their disputes by arbitration and that Brock had signed a distribution agreement promising to arbitrate any disagreement. The district court denied Flowers's motion, and the Tenth Circuit affirmed. Resting its decision on 9 U. S. C. § 1, the Tenth Circuit reasoned that Brock belonged to a class of workers engaged in interstate commerce and thus the court lacked authority to compel arbitration.

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Held: A worker who transports goods on an intrastate leg of an interstate journey can qualify for § 1's exemption without crossing state lines or interacting with vehicles that do. Pp. 385–390.

(a) The statutory text does not support a rule requiring workers to cross state lines or interact with vehicles that do. When the FAA was enacted, to "engage" meant to "take part in" something or to be "employ[ed]" or "involve[d]" in that thing. Black's Law Dictionary 661. And "interstate commerce" meant "[t]raffic," "intercourse," or "the transportation of persons or property between or among the several states . . . or from or between points in one state and points in another state." *Id.*, at 1001. Nothing in those terms requires an individual to

cross state lines or interact with a vehicle that does. Interstate commerce includes transporting products "between points in one state and points in another state," *ibid.*, which involves not just crossing state lines but intrastate activity too; "a continuous carriage" may begin in one State and end in another while "much of the journey" takes place "within the limits of a single state," Cyclopedic Law Dictionary 548. And at least sometimes, a person can take part, be employed, or be involved in that continuous journey without leaving a State or touching vehicles that do. Pp. 385–387.

(b) Historical precedent supports this interpretation. In *The Daniel Ball*, 10 Wall. 557, the Court held that a steamer transporting goods entirely within Michigan was "engaged in commerce between the States" because it "was employed in transporting goods destined for other States, or goods brought from without . . . Michigan." *Id.*, at 565. The Court explained that "[t]he fact that several different and independent agencies are employed in transporting the commodity, some acting entirely in one State, and some acting through two or more States, does in no respect affect the character of the transaction." *Ibid.* Other cases are to similar effect. See, *e. g.*, *Rearick* v. *Pennsylvania*, 203 U. S. 507; *Rhodes* v. *Iowa*, 170 U. S. 412; *Norfolk & Western R. Co.* v. *Pennsylvania*, 136 U. S. 114. Pp. 387–388.

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(c) Flowers's counterarguments are unavailing. Flowers observes that the cases above interpreted the Constitution's Commerce Clause, not § 1 of the FAA. The Court does not suggest that the scope of § 1 is coterminous with the scope of the Commerce Clause as interpreted at the time of the FAA's adoption in 1925. However, cases using the same language as § 1, or formulations very close to it, offer probative evidence of what an ordinary person at the time of the FAA's enactment would have understood its terms to mean.

Flowers hints at other reasons why Brock might not qualify for § 1's exemption, including that Flowers conducts its business with Brock through a distribution agreement with an independently operated company Brock owns, and that he orders and purchases Flowers's goods, taking title to them, before selling them to local stores—facts that some lower courts have found relevant. However, while Flowers discusses these facts in passing, it does not ask the Court to decide their legal significance, instead venturing all upon one cast by asking the Court to adopt a bright-line rule that an individual can never qualify for § 1's exemption unless he crosses state lines or interacts with vehicles that do. The statutory text cannot support such a rule. Pp. 388–390.

121 F. 4th 753, affirmed.

GORSUCH, J., delivered the opinion for a unanimous Court.

Counsel

Traci L. Lovitt argued the cause for petitioners. With her on the briefs were *John Brinkerhoff*, *Amanda K. Rice*, *David K. Suska*, *Matthew J. Rubenstein*, and *Kevin P. Hishta.*

Jennifer Bennett argued the cause for respondent. With her on the brief were *Hannah Kieschnick*, *Matthew Guarnieri*, *Jessica Garland*, *Craig M. Nicholas*, *Alex Tomasevic*, and *Shaun Markley.**

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*Briefs of *amici curiae* urging reversal were filed for the State of Missouri et al. by *Catherine L. Hanaway*, Attorney General of Missouri, *Louis J. Capozzi III*, Solicitor General, and *Ryan Dugan*, Assistant Solicitor General, and by the Attorneys General for their respective States as follows: *Stephen J. Cox* of Alaska, *Tim Griffin* of Arkansas, *Austin Knudsen* of Montana, and *Ken Paxton* of Texas; for Amazon.com, Inc., by *Michael E. Kenneally*; for the California Employment Law Council by *Paul Grossman*, *Chris A. Jalian*, and *Sean D. Unger*; for the Chamber of Commerce of the United States of America et al. by *Archis A. Parasharami*, *Daniel E. Jones*, *Jennifer B. Dickey*, *Jonathan D. Urick*, *Monica Welt*, *Joshua Moore*, *Karen R. Harned*, *Erika Klenicki*, *Elizabeth Gaudio Milito*, and *Patrick J. Moran*; for the DRI Center for Law and Public Policy et al. by *Sarah Elizabeth Spencer* and *Lawrence S. Ebner*; for the Independent Bakers Association et al. by *Thomas G. Hungar*, *Russell B. Balikian*, and *Cameron J. E. Pritchett*; for Menzies Aviation, Inc., by *Christopher Ward* and *John FizGerald*; for the Pioneer New England Legal Foundation by *Benjamin G. Robbins* and *Frank J. Bailey*; and for the Washington Legal Foundation by *Cory L. Andrews* and *Zac Morgan.*

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JUSTICE GORSUCH delivered the opinion of the Court.

The Federal Arbitration Act requires courts to enforce many private arbitration agreements. But not all. Section 1 of the Act provides that "nothing" in the law shall be used to compel arbitration in disputes involving the "contracts of employment" of any class of workers "engaged in . . . interstate commerce." 9 U. S. C. § 1. This case is the latest in a line posing questions about the scope of that exemption.

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Flowers Foods, Inc., is one of the Nation's largest producers of packaged baked goods. Some of its familiar products include Butterscotch Krimpets, Jumbo Honey Buns, and Wonder Bread, "which it promotes with a 95-foot-tall hot air balloon and a parade float called The Wondership." *Bissonnette* v. *LePage Bakeries Park St., LLC*, 601 U. S. 246, 249 (2024). From its bakeries in 19 States, Flowers distributes its products across the country.

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To get its products to market, the company depends in part on franchisees who "buy the rights to distribute Flowers[']s products in particular geographic territories." *Ibid.* This case involves one such franchisee, Angelo Brock, who serves the Denver area. Brock picks up Flowers's products from a warehouse in Colorado and delivers them to local stores, all without leaving the State.

In 2022, Brock sued Flowers in federal district court alleging that the company had underpaid him and other distribu-

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